

Commercial Solutions Opening (CSO)

N66604-26-9-A00X

Naval Undersea Warfare Center (NUWC)

SECTION 1 – INTRODUCTION

1.1 Background and Authority

The Naval Undersea Warfare Center (NUWC) is responsible for delivering undersea warfare (USW) capability that enables decisive warfighting advantage to the Fleet. NUWC is expanding Tactical Oceanography (TAC-O) prototyping efforts that include the development of new onboard and offboard environmental sensors and devices that build operator situational awareness and information systems that enable operators to increase performance of existing systems through expert use of the environment. NUWC requires technical expertise and support in the areas of oceanography, ocean acoustics, non-acoustics, USW system simulation, experimentation, prototype sensor and device development, systems engineering, operations research and analysis, and submarines tactics. These technical expertise and services are required to support research and development efforts associated with improving USW with existing systems, informing the next generation attack submarine and enabling the hybrid Fleet. The TAC-O team will conduct research and development that spans from concept development through experimentation and prototypes fully integrated into Navy platforms and tested at sea.

NUWC utilizes prototype Other Transaction Agreements (OTA or Agreements) under the authority of 10 U.S.C. § 4022 to partner with nontraditional and traditional defense contractors and non-profit research institutions to carry out prototype projects that are directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the DoD, or the improvement of platforms, systems, components, or materials in use by the armed forces. The information provided in this Commercial Solutions Opening (CSO) is intended to ensure that to the maximum extent practicable, competitive procedures are used when entering into agreements to carry out these prototype projects.

The Government intends to award up to \$80,000,000 through prototype project awards that ultimately result from this CSO.

1.2 CSO Procedure

This is a competitive solicitation seeking proposals for innovative, commercial technologies that accelerate attainment of defense capabilities. It is intended that this solicitation will result in the award of prototype projects, which may include not only commercially available technologies fueled by commercial or strategic investment, but also concept demonstrations, pilots, and agile development activities that can incrementally improve and rapidly field commercial technologies, existing Government-owned capabilities, or concepts for defense application.

This document outlines the phased competitive procedures for submitting proposals to this solicitation:

Phase 1: Solution Briefs – Solution Briefs submitted in response to this solicitation shall be submitted as specified in Section 3.2 of this document and will be evaluated against the criteria stated in this solicitation. The Government will not pay companies for the costs associated with Solution Briefs development and submission.

Phase 2: Pitches – Companies submitting qualified Solution Briefs may be invited to Phase 2, which is to provide a pitch which must comply with the instructions detailed in Section 4.0 of this document. The Government reserves the right to limit the number of companies invited to pitch their solutions. For example, a company's solution may be evaluated to be of merit but does not guarantee a pitch invitation will be offered. The Government may release additional information to all companies selected for Phase 2, which will be held at the classification level of the applicable SOW. The Government will not pay companies for costs associated with pitches. Companies will be evaluated based on information presented in both Phase 1 and 2.

Those companies whose Solution Briefs and Pitch Sessions are evaluated to be of merit and are selected will be awarded a Prototype OTA. The Government reserves the right to award OTAs to any number of companies based on the merit of the proposed concept in addressing the SOW. Those companies awarded an OTA will be eligible for prototype project. This structure is similar in structure to a Multiple Award Contract.

Phase 3: Prototype Project Awards – Those companies who are awarded an OTA may be invited to submit a project-specific proposal for prototype projects within the scope of the SOW. The Government will not pay companies for costs associated with the proposal development in Phase 3. Those Companies whose project-specific proposals are evaluated to be of greatest merit will be awarded if funding is available.

SECTION 2 – DEFINITIONS

“Commercial Solutions Opening” (CSO) is a method for employing the prototyping authority under 10 U.S.C. § 4022.

"Other Transaction Agreement" or "Agreement" refers to the type of Other Transaction Agreement (OTA) that may be awarded as a result of this CSO. This type of OTA is authorized by 10 U.S.C. § 4022 for prototype projects directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the DoD, or for the improvement of platforms, systems, components, or materials in use by the armed forces.

This type of OTA is treated by DoD as an acquisition instrument, commonly referred to as an "other transaction" for a prototype project or a Section 4022 "other transaction".

"Prototype Project" can generally be described as a proof of concept, model, reverse engineering to address obsolescence, pilot, novel application of commercial technologies for defense purposes, agile development activity, creation, design, development, demonstration of technical or operational utility, or combinations of the foregoing. A process, including a business process, may be the subject of a prototype project. Although assistance terms are generally not appropriate in OTA, ancillary work efforts that are necessary for completion of the prototype project, such as test site training or limited logistics support, may be included in prototype projects. A prototype may be physical, virtual, or conceptual in nature. The quantity should generally be limited to that needed to prove technical or manufacturing feasibility or evaluate military utility.

"Nontraditional Defense Contractor" is defined in 10 U.S.C. § 3014 as an entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by the DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. § 1502 and the regulations implementing such section. This includes all small business concerns under the criteria and size standards in 13 C.F.R. § 121).

"Nonprofit Institution" means a nonprofit institution, as defined in 15 U.S.C. § 3703 as an organization owned and operated exclusively for scientific or educational purposes, no part of the net earnings of which inures to the benefit of any private shareholder or individual.

"Small Business" is defined under Section 3 of the Small Business Act (15 U.S.C. 632).

SECTION 3 - SOLUTION BRIEFS (PHASE 1)

3.1 General Guidelines

1. Unnecessarily elaborate proposals (e.g. brochures or marketing material) are not desired.
2. Use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
3. Submissions shall identify clearly up-front which areas of the SOW are being addressed.
4. The period of performance for any Solution Brief submitted under this CSO should be no greater than 5 years.
5. Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.
6. The attached SOWs specify work at three (3) different classification levels: Unclassified/CUI, Secret, and TS/CSI. Solution Briefs shall be submitted at the unclassified level.
7. Solution Briefs containing data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes shall include the following sentences on the cover page:

"This Solution Brief includes data that shall not be disclosed outside the Government, except to non-Governmental personnel who are bound to non-disclosure, and shall not be duplicated, used, or

disclosed -- in whole or in part -- for any purpose other than to evaluate this submission. If, however, an agreement is awarded to this Company as a result of --or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting agreement. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]"

Each restricted data sheet should be marked as follows:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

8. Foreign-Owned businesses may independently submit a solution or do so as part of a teaming arrangement with one or more United States-Owned businesses. However, the ability to obtain an agreement based upon a submission may depend upon the ability of the Foreign-Owned business to obtain necessary clearances and approvals to obtain proscribed information.

9. Submissions should demonstrate compliance with the eligibility requirements:

In accordance with 10 U.S.C. 4022(d), at least one of the following conditions must be satisfied: (A) there is at least one nontraditional defense contractor or nonprofit research institution participating to a significant extent in the prototype project; (B) all significant participants are small businesses or nontraditional defense contractors; or (C) at least one third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government.

10. Partnership and teaming agreements are permitted, to allow for the strengths and specializations of individual companies to be integrated toward a complete system that is production-ready, inexpensive, and operationally effective.

11. Submissions Instructions

Solution Briefs shall be submitted by the date and time specified electronically via email to the following Government Point of Contact (POC): Julianna Ricci – julianna.b.ricci.civ@us.navy.mil. Files must be submitted in Microsoft Office formats or Adobe Acrobat. ZIP files and other application formats are not acceptable. All files must be print-capable and without a password required. Filenames must contain the appropriate filename extension (.docx, .doc, or .pdf). Filenames should not contain special characters. Apple users must ensure the entire filename and path are free of spaces and special characters. Proposals that do not meet these requirements are subject to disqualification at the sole discretion of the Government.

12. Solution Briefs that are chosen for the Phase 2 Pitch will be notified via email as soon as practicable.

3.2 Solution Brief Content

Solution Briefs should not exceed five (5) written pages (excluding title page, references and resumes) using 11-point font. Alternatively, Solution Briefs may take the form of briefing slides which should not exceed fifteen (15) slides. These limits are not requirements but are strongly recommended.

Title Page (does not count against page limit)

Company Name, Title, Date, Point of Contact Name, E-Mail Address, Phone, and Address.

Company

Provide a brief overview of the company, including facilities to complete the proposed work.

Technology Concept

Describe the background and objectives of the proposed work, the approach, deliverables, and the resources needed to execute it. Include the nature and extent of the anticipated results. Identify the type of support, if any, the Company requests of the Government in general such as facilities, equipment, data, and information or materials. Describe the unique aspects of your technology, the modeling and data analysis methodology to arrive at a technology, and the proposed work. Identify how it will improve the performance of USW system(s) through use of the ocean environment and the proposed technology. Describe the Navy standard oceanography models, data, tools, and USW simulation tools that will be used to either inform the technology or as part of the technology itself. Identify whether the effort includes a pilot or demonstration of existing commercial technology (identified as commercially ready and viable technology), or the development of technology for potential defense application. If development or adaptation is proposed, identify a suggested path to mature the technology. Identify aspects which may be considered proprietary.

Key Personnel (does not count against page limit; not to exceed two (2) pages per person)

The Offeror shall provide up to three (3) proposed key personnel. All key personnel positions shall identify a current employee or contingent hire to fulfil the role. Each resume (not to exceed two (2) pages) shall demonstrate the key personnel's qualifications to complete the tasking for which person has been proposed to perform.

The Offeror shall provide past performance reference that reflects recent relevant experience performed within the last three (3) years of the closing date of the solicitation. The past performance reference shall demonstrate the Offeror's ability to manage and execute the portion(s) of the SOW tasking for which the proposal is being submitted. Each past performance reference shall not exceed two (2) pages per reference, for no more than a total of six (6) pages. If no recent, relevant references are available, the Offeror shall submit a statement indicating as such. Past performance references are expected to be either from a system of record (such as the Government's Contractor Performance Assessment Reporting System, CPARS) or from a source that has direct knowledge of the contractor's performance on previous requirements.

Rough Order of Magnitude

Offerors are encouraged to provide a rough order of magnitude (ROM) price.

All Solutions Briefs shall be unclassified.

3.3 Solution Brief Basis of Evaluation

All solution briefs correctly submitted will be evaluated against the stated criteria below. Solution Briefs will be evaluated on the basis of the merit of the proposed concept in addressing the SOW, not against other Solution Briefs submitted in response to this CSO.

- 1) Relevance of the Solution Brief in addressing specific requirements of the SOW.
- 2) Technical merit and feasibility of the solution to address the requirements in the SOW.
- 3) Relevancy and recency of demonstrated Past Performance.
- 4) Potential impact of data rights assertions. The Solution Brief will identify any IP involved in the effort and associated restrictions on the Government.
- 5) Facilities.
- 6) Offerors are encouraged to provide a rough order of magnitude (ROM) price. However, price will not be considered as an evaluation factor for the Solution Briefs.

During the evaluation phase the Government may request the Company provide additional information/detail with respect to the Solution Brief.

Upon completion of Solution Brief evaluations, the Government will notify the Company that:

- (1) the proposed concept/technology/solution has been selected for the Pitch phase; or
- (2) the proposed concept/technology/solution is not of interest to the Government.

SECTION 4 – PITCHES (PHASE 2)

4.1 General Guidelines

In Phase 2, companies shall provide an in-person pitch at their proposed location or other location agreed upon by the company and the Government to demonstrate and provide further details on their proposed concept / technology / solution and the technical and business viability of the proposed solution. The Government may also leverage external market research during Phase 2 to evaluate a company's viability. In addition to the Pitch, the Government, at its discretion, may request for consideration an additional written submission to further supplement or clarify the information provided in the Phase 1 Solution Briefs. The Government, at its discretion, may elect to release additional information to companies that have been selected for the pitch.

The pitch format will be as follows:

- (1) Up to a 90-minute presentation provided by the company, the Government may request an audio recording of this presentation
- (2) Up to a 90-minute question and answer between the Government and company
- (3) Up to a 120-minute site visit / tour of facilities by company, if the company location is selected

Individual pitches will be evaluated based on the merit of the proposed concept in addressing the SOW.

4.2 Pitch Content

During the Phase 2 Pitch, the company must detail / address at a minimum:

- **Organizational breakdown**
 - Explain the team and major stakeholder structure and subject matter expertise within the team.
- **Technology Solution**
 - Overview of the attributes which will be met by the solution.
 - Design maturity and past operational history (if applicable). If not applicable, detail the approach to overcome this potential barrier.
- **Production capacity**
 - Production capacity refers to both the ability to conduct large-scale analyses and the ability to produce articles of a prototype for testing and evaluation.
 - Historical production capacity and past performance.
 - Upcoming site development plans or expansion opportunities.
 - Manufacturing readiness to include planned throughput and capacity for prototyping and production
 - Historic staffing levels, potential gaps in critical skills, and hiring plans if necessary for potential prototype and production efforts
- **Estimated Price / Schedule**
 - Provide pricing support for the ROM estimate if submitted in Phase 1 and notional prototyping and production schedule for how this concept may be prototyped within the DoD.
- **Data Rights Assertions**
 - The Phase 2 Pitch will identify any IP involved in the effort and associated restrictions on the Government's use of that IP.
 - The Government desires Government Purpose Rights for certain information for the sustainment of production assets. Present the planned IP approach for a follow-on production OT effort for a technical data package and any software associated with the solution.

4.3 Pitch Basis of Evaluation

Individual pitches will be evaluated against the following factors:

- (1) Relevance of the solution in addressing the proposed portions of the SOW and the requirements in this document;
- (2) The solution has technical merit, adequately addresses Government need and is feasible;
- (3) Evaluation of company viability;
- (4) Company's approach is a compelling solution to the Government problem;
- (5) The cost estimate and details behind this estimate;
- (6) A notional production schedule is acceptable; and
- (7) The potential impact of data rights assertions.

Upon completion of the Pitch phase evaluations, the Government will notify the Company that:

- (1) the proposed concept/technology/solution has been selected for award of an OTA; or
- (2) the proposed concept/technology/solution is not of interest to the Government.

SECTION 5 – PROTOTYPE PROJECT AWARDS (PHASE 3)

5.1 General Guidelines

After award of the OTA, the Government may issue the Company a Request for Project Proposal (RPP) for a project-specific proposal in accordance with a Collaborative Task Instruction (CTI). Receipt of an RPP does not guarantee that a Company will receive a prototype project award. The Government reserves the right, at any point prior to award, to cancel the RPP.

If an RPP is provided, the Company will be invited to develop and submit its proposal. Companies may discuss ideas and details of the proposal during the proposal writing process with the Government. Specifics on a CTI will be provided at the time of RPP.

Upon favorable review and available funds, the Government may choose to make a prototype project award to the Agreement Holder. The Agreements Officer will negotiate directly with the Company and will execute the prototype project award on behalf of the Government. ***Only an Agreements Officer has the authority to enter into, or modify, a binding agreement on behalf of the Government.***

Companies must have a Dunn and Bradstreet (DUNS) number and must register in the System for Award Management (SAM) to receive an award. Companies are advised to commence SAM registration upon receipt of an RPP.

Companies must also register in the prescribed Government invoicing system (e.g. Wide Area Work Flow).

The Company must be determined to be responsible by the Agreements Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving award.

SECTION 6 - ITERATIVE PROTOTYPING

Prototype awards made under this CSO will allow for an iterative prototyping process. An iterative prototyping process will allow the Government to modify, by mutual agreement, the work in a prototype project to allow the adaptation and modification of the technology being prototyped to meet additional unique and discrete purposes/mission sets.

SECTION 7 – FOLLOW-ON PRODUCTION

Upon successful completion of any prototype project under the OTA, the Government and Company may negotiate a follow-on production contract or agreement without further competition. Any concept/technology/solution successfully proven through a Prototype OTA can be transitioned to production.

The Agreement provided under this CSO and Prototype OTAs awarded includes language providing for the potential award of a follow-on production contract or agreement as authorized under 10 U.S.C.

§4022(f). Individual CSO prototype OTAs will explicitly identify follow-on Prototype OTAs as a potential outcome of a successful prototyping effort.

SECTION 8 – SUCCESSFUL COMPLETION

A transaction for a prototype project is complete upon the written determination of the appropriate approving official (Agreement Officer) for the matter in question that efforts conducted under a Prototype OTA: (1) met the key technical goals of a project; (2) satisfied success metrics incorporated into the Prototype OTA; or (3) accomplished a particularly favorable or unexpected result that justifies the transition to production.

Furthermore, successful completion can occur prior to the conclusion of a prototype project to allow the Government to transition any aspect of the prototype project determined to provide utility into production while other aspects of the prototype project have yet to be completed. Any Prototype OTA shall contain a provision that sets forth the conditions under which that prototype agreement must be successfully completed.